

26STCV11657 26STCV11657

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-22

Motion: DEFENDANT INTER-CON SECURITY SYSTEMS, INC.'S MOTION TO COMPEL ARBITRATION

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Case Number: 26STCV11657 Hearing Date: September 22, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

NICOLE AUDREY RUCHMAN, an
Individual,

Plaintiff,

vs.

INTER-CON SECURITY SYSTEMS,
INC., a California Corporation; and DOES 1 through 10, Inclusive,

Defendants.

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CASE NO: 26STCV11657

[TENTATIVE] ORDER RE: DEFENDANT

INTER-CON SECURITY SYSTEMS, INC.'S MOTION TO COMPEL ARBITRATION

Dept. 731

September 22, 2026

8:30 a.m.

Matter No. 19

Moving Party: Defendant, Inter-Con Security Systems, Inc.

Opposing Party: Plaintiff, Nicole Audrey Ruchman

Notice: OK

Background Facts

Now before the Court is Defendant Inter-Con

Security Systems, Inc.'s opposed motion to compel into arbitration the Fair

Employment and Housing Act ("FEHA"), California Family Rights Act ("CFRA"),

Family and Medical Leave Act ("FMLA"), Labor Code, Business and Professions Code, and common law claims alleged in Plaintiff's April 10, 2026, Complaint, where the claims arise from allegations of age and disability discrimination, harassment, and retaliation and wage and hour violations experienced by Plaintiff in her employment with Defendant through her termination of employment.

Motion to Compel Arbitration

a. Legal Standard

The Federal Arbitration Act ("FAA"), while a federal statute, applies in California courts and requires state courts to enforce arbitration agreements as required by the federal common law developed under the FAA. (See *Southland Corp. v. Keating* (1984) 465 U.S. 1, 15-16 (*Southland Corp.*); *Broughton v. Cigna Healthplans* (1999) 21 Cal.4th 1066, 1074-78, superseded by statute on another ground as stated in *Ferguson v. Corinthian Colleges, Inc.* (9th Cir. 2013) 733 F.3d 928, 937.) The FAA preempts and invalidates state law and state judicial decisions that disfavor arbitration or require arbitration provisions to pass higher scrutiny. (*Southland Corp.*, *supra*, at p. 12; *Perry v. Thomas* (1987) 482 U.S. 483, 490.) If the parties designate the FAA applies, then California arbitration law is preempted. (See, e.g., *Rodriguez v. American Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1121-1122.) However, courts have found that where the FAA is found not to apply, the California Arbitration Act (Code Civ. Proc. § 1280 et seq.) applies. (See *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 178 (*Valencia*).)

A court's inquiry is limited to a determination of (1) whether a valid arbitration agreement exists and (2) whether the arbitration agreement covers the dispute. (9 U.S.C. § 4; *Chiron Corp. v. Ortho Diagnostics Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130; *Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84; see *Simula, Inc. v. Autoliv, Inc.* (9th Cir. 1999) 175 F.3d 716, 720 [if the finding is affirmative on both counts the FAA requires the Court to enforce the arbitration agreement in accordance with its terms]; see *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961 [In determining the enforceability of an arbitration agreement, the court first considers "two 'gateway

issues' of arbitrability: (1) whether there was an agreement to arbitrate between the parties, and (2) whether the agreement covered the dispute at issue"] Lacayo v. Cataline Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257 (Lacayo) [Where moving party meets initial burden, "the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition"].)

Even where the FAA governs the interpretation of arbitration clauses, California law governs whether an arbitration agreement has been formed in the first instance. (Baker v. Osborne Development Corp. (2008) 159 Cal.App.4th 884, 893.)

Discussion

i. Defendant's Burden

1. Existence of Agreement

The Court first determines that Defendant carries its burden of showing an agreement to arbitrate.

"Parties are not required to arbitrate their disagreements unless they have agreed to do so. [...] In California, a 'clear agreement' to arbitrate may be either express or implied in fact. [Citation.]" (Davis v. Nordstrom, Inc. (9th Cir. 2014) 755 F.3d 1089, 1092-1093 [applying California law].) The court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219.)

Here, Defendant provides a declaration from Heather Bean, Defendant's Senior Vice President, Assistant General Counsel – Global Litigation & International (cir. Mar. 2025) (formerly Vice President, Assistant General Counsel- Global Litigation & International; Assistant General Counsel), which sufficiently authenticates Plaintiff's September 30, 2026, electronic signature on onboarding documents including a Mutual Agreement to Arbitrate Claims. (Motion, Bean Decl., ¶¶ 14-16, Ex. A.)

The Court finds insufficient merit
to Plaintiff's two arguments against this conclusion.

First, Plaintiff's electronic
signature is sufficiently authenticated.

California case law has held that
an electronic signature was properly authenticated when a declarant "detailed
[the company's] security precautions regarding transmission and use of an
applicant's unique username and password, as well as the steps an applicant
would have to take to place his or her name on the signature line of the
employment agreement ...," such that, "[b]ased on this procedure, [the declarant]
concluded that the 'name [of the employee] could have only been placed on the
signature pages of the employment agreement ... by someone using [the employee's]
unique user name and password,'" and that "[g]iven this process for signing
documents and protecting the privacy of the information with unique and private
user names and passwords, the electronic signature was made by [the employee]
on the employment agreement ... at the date, time, and IP address listed on the
documents." (*Espejo v. Southern California Permanente Medical Group*
(2016) 246 Cal.App.4th 1047, 1062 (*Espejo*).)

Here, contrary to Plaintiff's
opposition arguments (Opposition, pp. 2-4), the Bean declaration reflects the
requirements of *Espejo*. (Motion, Bean Decl., ¶¶ 4-20, Ex. A.)

Second, the Court finds
insufficient merit to Plaintiff's argument that there was no mutual assent in
entering the agreement to arbitrate because Plaintiff's recollection of the
onboarding process fails to include recollection of signing an agreement to
arbitrate.

The burden of persuasion is always
on the moving party to prove the existence of an arbitration agreement with the
opposing party by a preponderance of the evidence. (*Gamboa v. Northeast*
Community Clinic (2021) 72 Cal.App.5th 158, 164-165 (*Gamboa*),
citations omitted.) However, the burden of production may shift in a three-step
process. (*Id.* at p. 165.)

The moving party first bears the
burden of producing prima facie evidence of a written agreement to arbitrate

the controversy, which can be met by the moving party by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. (Gamboa, supra, 72 Cal.App.5th at p. 165, citations omitted.) Here, as discussed above, Defendant provides a copy of an electronic signature from Plaintiff on an agreement to arbitrate, meeting its initial burden.

Next, the burden shifts to the opposing party to produce evidence to challenge the authenticity of the agreement, which can be met by "testify[ing] under oath or declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Gamboa, supra, 72 Cal.App.5th at p. 165, citations omitted.) Here, Plaintiff disputes ever signing the agreement to arbitrate, meeting his burden. (Opposition, Ruchman Decl., ¶ 7.)

Last, the burden shifts back to the moving party, who must establish with admissible evidence a valid arbitration agreement between the parties. (Gamboa, supra, 72 Cal.App.5th at p. 165.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (Id. at pp. 165-166, citations omitted.) Here, the Court accepts that the preponderance of the evidence, in the form of the Bean declaration and its attachments, shows an agreement to arbitrate between the parties.

Consequently, the Court determines Defendant has carried its burden of persuasion to show an agreement to arbitrate between the parties.

2. Delegation

Clause

The Court next determines that, though not raised by the parties, the remaining issues relating to arbitration—e.g., interstate commerce, scope, and defenses—must be delegated to the arbitrator.

Under the Federal Arbitration Act the gateway issue of arbitrability presumptively is reserved for the court, but the parties also may delegate that issue to the arbitrator, provided that the language of their arbitration agreement provides "clear and unmistakable" evidence that this was their intent. (First Options of Chicago, Inc. v.

Kaplan (1995) 514 U.S. 938, 944; Caremark, LLC v. Chickasaw Nation (9th Cir. Aug. 9, 2022) 43 F.4th 1021, 1029-1030.) A delegation of issues of formation to the arbitrator does not prevent the court from making that determination. (Granite Rock Co. v. International Broth. of Teamsters (2010) 561 U.S. 287, 299; Caremark, supra, at p. 1030.)

Here, the agreement to arbitrate

provides that “the parties agree that all other disputes between them, including without limitation, disputes concerning formation or enforceability of this Agreement, are delegated to the Arbitrator who shall have exclusive authority to resolve such disputes.” (Motion, Bean Decl., ¶ 16, Ex. A, § 12.)

This language amounts to a clear and unmistakable delegation of authority to resolve formation and enforceability issues to the arbitrator. (Cf. Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 891 [“There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.”].)

Consequently, the Court determines that

a clear and unmistakable clause in the parties’ agreement to arbitrate delegates to the arbitrator the remaining questions raised by the parties’ papers regarding enforcement of the arbitration agreement.

3. Interstate

Commerce, Scope of Agreement

Based on the reasoning above, the

Court declines to further discuss Defendant’s burden on a motion to compel arbitration.

ii. Plaintiff’s

Burden

The Court likewise declines to

further discuss Plaintiff’s burden on a motion to compel arbitration based on the above reasoning.

c. Stay

"If any

suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration." (9 U.S.C., § 3; see Code Civ. Proc., § 1281.4.)

Here, the Court having found sufficient grounds for relief to grant Defendant's motion, the Court also finds sufficient grounds for a stay.

d. Conclusion

Defendant Inter-Con Security Systems, Inc.'s motion to compel arbitration is GRANTED.

This action is STAYED pending resolution of the arbitration.

The Court SETS an Order to Show Cause re Arbitration for January 14, 2026, at 8:30 AM.

Five court days prior to the Order to Show Cause the parties SHALL file a joint declaration updating the Court on the status of arbitration.

Defendant Inter-Con Security Systems, Inc. is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and

must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 22, 2026 _____

MARK C. KIM

Judge of the
Superior Court